

RESOLUTION NO. 25-9516

**A RESOLUTION OF THE CITY OF SANTA CLARA, CALIFORNIA,
AMENDING CITY RATE SCHEDULES FOR ELECTRIC UTILITY
SERVICE TO INCREASE ELECTRIC RATES AND CHARGES IN
EACH RATE SCHEDULE BY FOUR PERCENT (4.0%) EFFECTIVE
JANUARY 1, 2026**

WHEREAS, Chapter 13.05 of the Santa Clara City Code ("Code"), which is entitled Operation of an Electric Utility, provides that all electric energy and power furnished to customers of the Electric Department ("Electric Department") of the City of Santa Clara, California, doing business as Silicon Valley Power, shall be supplied and charged to such customers, and paid for by such customers in accordance with certain electric rate schedules, tariffs, and rules and regulations adopted by the City Council;

WHEREAS, Section 13.05.040 of the Code further states that the City Council may, by resolution, review, revise, adopt and/or promulgate new or amended electric utility rate schedules from time to time as it deems necessary to meet the City's contractual obligations and debt service requirements and to cover the cost of constructing, operating and maintaining the electric utility;

WHEREAS, on December 8 and December 10, 2025, a notice of the public hearing regarding a proposed four percent (4.0%) increase to rates and charges in the City of Santa Clara Electric Rate Schedules ("Rate Schedules") was published in the San Jose Mercury News and the Silicon Valley Voice, respectively;

WHEREAS, the Electric Department presented a Report To Council to the City Council ("Report to Council") at its regularly scheduled meeting on December 16, 2025, in support of the proposed four percent (4.0%) and amendment to the Rate Schedules, which are attached hereto and incorporated herein by this reference;

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WHEREAS, the proposed four percent (4.0%) increase to the rates and charges in the Rate Schedules are necessary to enable the Electric Department to (1) fund, among other things, the capital and operating needs for (a) additional staffing and contractual support needed to uphold operational continuity and achieve successful project delivery, and (b) continuing investment in infrastructure security and long-term operational system reliability; (2) increase reserves to (a) maintain existing reserves at or above the minimum target of the approved ranges to maintain financial stability and the bond rating of the Electric Department; and (b) keep reserves consistent with growth projections and mitigate risks from market volatility and contingencies; and (3) recover cost associated with a catastrophic gas-turbine failure at the Donald Von Raesfeld power plant (DVR), including loss of generation revenue, additional transmission costs, and turbine rental costs, spare part costs, and additional turbine replacement or backup costs;

WHEREAS, the City Council reviewed the recommendations contained in the Report to Council, namely that the City Council amend the Rate Schedules for utility service to increase electric rates and charges in such Rate Schedules by four percent (4.0%) beginning January 1, 2026; and

WHEREAS, the City Council has considered the evidence which was presented to it and concurs with the findings as set forth herein to support the four percent (4.0%) increase to the rates and charges in the Rate Schedules.

NOW THEREFORE, BE IT RESOLVED BY THE CITY OF SANTA CLARA AS FOLLOWS:

1. That the findings as set forth above are hereby adopted by the City Council of the City of Santa Clara.
2. The four percent (4.0%) increase to the rates and charges in the Rate Schedules and other amendments to the Rate Schedules are hereby adopted by the City Council of the City of Santa Clara, as reflected in the attachments hereto, effective January 1, 2026.

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3. That a true and correct copy of the Resolution, including amended Rate Schedules, shall be kept on file in the Office of the City Clerk and in the Billing Division of the City Finance Department at all times while the Rate Schedules are effective and, until further amended or replaced, shall be open to public investigation and inspection during the regular business hours of such offices.

4. Effective date. This resolution shall become effective immediately.

I HEREBY CERTIFY THE FOREGOING TO BE A TRUE COPY OF A RESOLUTION PASSED AND ADOPTED BY THE CITY OF SANTA CLARA, CALIFORNIA, AT A REGULAR MEETING THEREOF HELD ON THE 16TH DAY OF DECEMBER, 2025, BY THE FOLLOWING VOTE:

AYES: COUNCILORS: Chahal, Cox, Gonzalez, Hardy, and Jain

NOES: COUNCILORS: Park and Mayor Gillmor

ABSENT: COUNCILORS: None

ABSTAINED: COUNCILORS: None

ATTEST:



NORA PIMENTEL, MMC
ASSISTANT CITY CLERK
CITY OF SANTA CLARA

Attachments incorporated by reference:

1. Rate Schedules for Electric Services to be Effective January 1, 2026

**CITY OF SANTA CLARA
SILICON VALLEY POWER**

**RATE SCHEDULE NM
NET ENERGY METERING SERVICE**

Sheet 1 of 3

With 2026 Excess Energy Rate

APPLICABILITY:

This Net Energy Metering rate schedule is applicable to all Eligible Customer-Generators served by Silicon Valley Power (SVP). Availability of this schedule to such "Eligible Customer-Generator" will be on a first-come first-served basis, until the total rated generating capacity operated by eligible customer-generators equals 5.0 percent of SVP's annual peak distribution demand.

DEFINITION:

An "Eligible Customer-Generator" is any Customer who uses a Renewable Generating Facility, or combination of those facilities, with a total capacity of not more than one megawatt, that (1) is located on that Customer's Property, (2) is interconnected and operates in parallel with the SVP's transmission and distribution facilities, and (3) offsets no more than part or all of the Customer's own electrical requirements on the Property. If used in combination with energy storage equipment, the energy storage equipment inverter must not (1) be larger than the Renewable Generating Facility, or (2) discharge more than four hours., Eligible Customer-Generator is also referred to as "Customer" in this rate schedule.

"Property" means an undivided parcel of real property that is owned, leased, or licensed by Customer.

"Renewable Generating Facility" means a facility that generates electricity from a renewable source listed in paragraph (1) of subdivision (a) of Section 25741 of the Public Resources Code, including solar or a wind turbine electrical generating facility, or a hybrid system of both. Renewable Generating Facility also referred to as "Facility" in this rate schedule.

RATES:

All rates charged under this schedule shall be the same as the rates charged under the eligible customer generator's otherwise applicable rate schedule (OAS). An Eligible Customer-Generator served under this schedule shall be responsible for all charges under the otherwise applicable rate schedule, except that energy usage will be metered and billed on a net basis. An annual bill will be rendered, as required by Section 2827 of the California Public Utilities Code. A monthly statement of accumulated charges and credits shall be provided. Monthly statements shall be subject to SVP's payment provisions pursuant to Section 6 of the Municipal Service Rule and Regulation, except that customers whose OAS is a demand metered SVP Rate Schedule shall be subject to monthly payment of bills, and be subject to annual true-up as necessary. If the energy generated exceeds the energy consumed during the annual billing cycle, at the Eligible Customer-Generator's option, payment shall be made for such excess energy delivered to SVP's distribution facilities as set forth below, or applied as a credit to the next annual billing cycle.

LOAD AGGREGATION OPTION:

An Eligible Customer-Generator with multiple meters may elect to aggregate the electrical load of the meters located on the Property where their Renewable Generating Facility is located, and on all properties adjacent or contiguous to the Property on which the Renewable Generating Facility is located, if those properties are solely owned, leased, or rented by the Eligible Customer-Generator.

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**CITY OF SANTA CLARA
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**RATE SCHEDULE NM
NET ENERGY METERING SERVICE**

Sheet 2 of 3

With 2026 Excess Energy Rate

If an Eligible Customer-Generator chooses to aggregate the electrical load of such meters, (i) the Eligible Customer-Generator shall be permanently ineligible to receive net surplus electricity compensation, and SVP shall retain any kilowatt-hours in excess of the Eligible Customer-Generator's aggregated electrical load generated during the 12-month period; (ii) the electricity generated by the Renewable Generating Facility shall be allocated to each of the meters in proportion to the electrical load served by those meters for each billing period. This proportionate allocation shall be calculated based on Eligible Customer-Generator's load data averaged over an indicative 12-month period (estimated if necessary) and should be effective for a minimum of 12 months.

METERING:

Net energy metering is the use of a single meter to measure the flow of electricity in two directions. If the existing electrical meter of an Eligible Customer-Generator is not capable of measuring the flow of electricity in two directions the Eligible Customer-Generator shall be responsible for all expenses involved in purchasing and installing a meter that is able to measure electricity flow in two directions. Any additional meter or meters to monitor the flow of electricity in each direction may be installed with the consent of the Eligible Customer-Generator, at SVP expense. SVP meter(s) to monitor the output of Customer's Renewable Generating Facility are required if Customer elects the Load Aggregation Option. Such meters shall be provided by SVP and paid for by the Eligible Customer-Generator.

INTERCONNECTION:

Prior to interconnection, the Eligible Customer-Generator shall execute an interconnection agreement with SVP and shall comply with SVP's Rules and Regulations regarding parallel generation, except that service under a standby rate schedule shall not be required. The Eligible Customer-Generator and their Renewable Generating Facility must also comply with all applicable federal, state, and local laws and all applicable safety and performance standards established by the National Electrical Code, the Institute of Electrical and Electronics Engineers, and accredited testing laboratories such as Underwriters Laboratories and, where applicable, rules of the California Public Utilities Commission regarding safety and reliability. In the event, an Eligible Customer-Generator's interconnection agreement expires, and their Renewable Generating Facility continues to be interconnected that Customer and their facility will still be subject to this rate schedule and shall comply with SVP's Rules and Regulations, all federal state, and local laws, and all applicable safety and performance standards set forth in the preceding sentence.

PAYMENT RATE FOR EXCESS ENERGY:

The Payment Rate for Excess Energy shall be revised during each calendar year, and shall consist of the sum of an avoided energy cost charge and an avoided renewable energy value charge. The avoided energy cost is equal to 8000 Btu/kWh times SVP's avoided cost of gas in \$/MMBtu. The avoided cost of gas shall be the average of the 12 monthly values for PG&E Citygate taken from Natural Gas Intelligence, adjusted to include transportation to Santa Clara, ending in October of the year prior to the effective date of the Payment Rate for Excess Energy. The avoided renewable energy value charge shall be equal to the average cost of the unbundled renewable energy credits SVP purchased for SVP's RPS compliance in the calendar year 2025.

Payment Rate for Excess Energy effective January 2026: **\$0.05366** per kWh

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**CITY OF SANTA CLARA
SILICON VALLEY POWER**

RATE SCHEDULE NM NET ENERGY METERING SERVICE	Sheet 3 of 3
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With 2026 Excess Energy Rate

Exhibit A

**Rate Schedule NM
Derivation of Payment Rate for Excess Energy**

1. Avoided energy cost charge:

Average of the monthly values for PG&E Citygate from Natural Gas Intelligence for the 12 months ending October 2025: \$3.615 per MMBtu

Average cost of transportation from PG&E Citygate to Santa Clara Donald Von Raesfeld Power Plant for the 12 months ending October 2025: \$2.421 per MMBtu

Total average delivered cost of gas: \$6.036 per MMBtu

Avoided energy cost = \$6.036 per MMBtu x 8000 Btu/kWh = \$0.04829/kWh

2. Avoided renewable energy value charge:

The average cost of the unbundled renewable energy credits SVP would have purchased for SVP's RPS compliance in the calendar year 2025: \$0.00537 per kWh

3. Payment Rate for Excess Energy beginning January 2026:

	<u>\$/kWh</u>
Avoided energy cost charge	\$0.04829
Avoided renewable energy value charge	\$0.00537
Total	\$0.05366

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**CITY OF SANTA CLARA
SILICON VALLEY POWER**

**RATE SCHEDULE SB-1
STANDBY GENERAL SERVICE
DEMAND METERED**

Sheet 1 of 2

DESCRIPTION OF SERVICE

This schedule is applicable to standby service for customer's on-site self-generation operated in parallel with service from SVP under any of SVP's applicable demand-metered rate schedules, where such self-generation is not eligible for service under Schedule NEM. This Schedule does not apply to customer's on-site renewable electrical generation facility where Schedule NEM is applicable. The Capacity Reservation Charges under this Schedule SB-1 are supplemental to the demand charges under the applicable demand-metered rate schedule, and are intended to result in SVP recovering its costs to provide standby services for the on-site generation capacity.

RATES:

CUSTOMER CHARGE:

The Customer Charge is equal to the applicable Customer Charge set forth in Customer's otherwise applicable rate schedule.

CAPACITY RESERVATION CHARGE (CRC):

The Capacity Reservation Charge is equal to the applicable Demand Charge per kW set forth in customer's otherwise applicable Rate Schedule multiplied by the lower of 45% of the nameplate rating of customer's on-site generation or the Reservation Capacity determined pursuant to Note D.

SURCHARGES:

Public Benefits Charge, as set forth in Note B, will be added to the above charges.

NOTES:

(A) **FLUCTUATIONS IN CUSTOMER'S SELF-GENERATION OUTPUT:**

Customer shall coordinate with SVP's System Dispatcher for changes of 2000 kW or more in the output of customer's self-generation. If operationally necessary and practical, the System Dispatcher may require customer to schedule the return to service of customer's self-generation. Such coordination shall not relieve Customers from Capacity Reservation Charges determined above.

(B) **PUBLIC BENEFITS CHARGE:**

The Public Benefits Charge is a state required non-bypassable surcharge imposed on all sales of electricity and electrical services. It is used to fund public goods research, development, and demonstration, as well as, energy efficiency activities, renewable energy, and low-income assistance programs. The surcharge is equal to the sum of the Meter Charge and Capacity Reservation Charge, times 0.0285.

(C) **PARALLEL OPERATION:**

Any customer may operate its generating plant in parallel with SVP's system if the customer's plant is constructed and operated in accordance with SVP Rule. However, a customer who operates its plant in parallel must assume responsibility for protecting SVP and other parties from damage resulting from

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**RATE SCHEDULE SB-1
STANDBY GENERAL SERVICE
DEMAND METERED**

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negligent operation of the customer's facilities. Customers may be required to meet requirements imposed by other governing entities having jurisdiction over SVP's transmission lines including the California Independent System Operator (CAISO) and the Western Electricity Coordinating Council (WECC). Customer generation under this rate schedule shall be metered by SVP. Customer shall provide a meter location that accommodates SVP's meter and such meter shall be fully accessible by SVP.

(D) RESERVATION CAPACITY:

The Reservation Capacity to be used for billing under the above rates shall be determined as set forth below:

The Reservation Capacity shall be as initially determined by SVP, except that during the first 12-month period following the date of initial determination, SVP may review the specified Reservation Capacity on a monthly basis and make adjustments as warranted (consistent with the criteria specified below). Thereafter, SVP may perform an annual review of the most recent 12 months of actual customer operation and make prospective adjustments to the Reservation Capacity as warranted and consistent with customer's historic operations. Any such adjusted Reservation Capacity shall be effective for a minimum of 12 months unless a documented material change of operation is provided to SVP by the customer. The customer may provide SVP with documentation of such material changes in operations as might call for an adjusted Reservation Capacity at any time. Upon receipt and review of such documentation, SVP shall revise the Reservation Capacity at its sole discretion and such a revision will be effective for the billing period immediately following receipt, acceptance and approval of the documentation and any additional information required by SVP to make such a determination. For purposes of subsequent annual reviews and any resulting adjustment to the Reservation Capacity, the following criteria shall apply:

a. For those customers who operate sufficient non-utility generating capacity so as to ordinarily satisfy all of the electric energy requirements at their site and so do not ordinarily require any service through facilities owned by SVP, the Reservation Capacity shall not exceed the customer's highest peak demand established during the most recent 12 months of actual customer operation;

b. For customers with electric loads that exceed the output capability of their non-utility generation, and thus require the regular provision of supplemental power service through facilities owned by SVP, the Reservation Capacity determination shall consider the number and size of the customer's non-utility generating unit(s), the outage diversity of the non-utility generating units serving the customer's load, and any reduction of customer load commensurate with non-utility generator capacity outages.

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**CITY OF SANTA CLARA
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RATE SCHEDULE A MUNICIPAL WATER DEPARTMENT	Sheet 1 of 1
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DESCRIPTION OF SERVICE:

The schedule is applicable to electricity used by the Municipal Water Department for water and sewer pumping service.

RATES:

All kWh, per kWh \$ 0.15110

SURCHARGE:

Public Benefits Charge and State Surcharge, as set forth in Note A, will be added to the above charge.

NOTES:

(A) SURCHARGES:

PUBLIC BENEFITS CHARGE:

The Public Benefits Charge is a state required non-bypassable surcharge imposed on all sales of electricity and electrical services. It is used to fund public goods research, development, and demonstration, as well as, energy efficiency activities, renewable energy and low income assistance programs. The surcharge is equal to kWh billed times 2.85%.

STATE SURCHARGE: The state surcharge is required by California state law, and supports funding for the California Energy Commission. The surcharge is equal to kWh billed times the State Surcharge Rate. The current State Surcharge Rate can be found on SVP's website at:

<http://www.siliconvalleypower.com/svp-and-community/rules-and-regulations>

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**CITY OF SANTA CLARA
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**RATE SCHEDULE C-1
GENERAL SERVICE**

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DESCRIPTION OF SERVICE:

This schedule is applicable to alternating current service through one meter, for power and heating alone or combined with lighting. This schedule is applicable to customers who do not qualify for Schedule D-1, CB-1, CB-3, CB-6, CB-7 or CB-8. The Time of Use (TOU) Option is available to all customers. Customers who utilize the TOU option will be responsible for the installed cost of a TOU meter, as set forth in Note (B) below.

RATES:

Non-Time of Use

Time of Use Option

SINGLE-PHASE SERVICE:

CUSTOMER CHARGE, per meter per month: \$ 5.52 \$ 5.52

ENERGY CHARGE: (In addition to the Customer Charge)

		<u>Peak</u>	<u>Off-Peak</u>
First 800 kWh, per kWh	\$ 0.26620	\$0.28968	\$0.24697
Excess Over 800 kWh, per kWh	\$ 0.24166	\$0.26514	\$0.22242

MINIMUM CHARGE: \$5.52 per meter per month but not less than \$3.43 per month per kVA of connected welder load, rectifier load, x-ray and x-ray type equipment load, fusing machine load, and other types of welding equipment load.

THREE-PHASE SERVICE: The single-phase rate plus \$4.33 per meter per month.

MINIMUM CHARGE: \$9.85per month, but not less than \$3.43 per month per kVA of connected welder load and per horsepower of polyphaser connected load, rectifier load, x-ray and x-ray type equipment load, fusing machine load, and other types of welding load.

SURCHARGES:

Public Benefits Charge and State Surcharge, as set forth in Note A, will be added to the above charges.

NOTES:

(A) SURCHARGES:

PUBLIC BENEFITS CHARGE:

The Public Benefits Charge is a state required non-bypassable surcharge imposed on all sales of electricity and electrical services. It is used to fund public goods research, development, and demonstration, as well as, energy efficiency activities, and low income assistance programs. The surcharge is equal to the sum of the Customer Charge and the Energy Charge times 0.0285.

STATE SURCHARGE: The state surcharge is required by California state law, and supports funding for the California Energy Commission. The surcharge is equal to kWh billed times the State Surcharge Rate.

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**CITY OF SANTA CLARA
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**RATE SCHEDULE C-1
GENERAL SERVICE**

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The current State Surcharge Rate can be found on SVP's website at:

<http://www.siliconvalleypower.com/svp-and-community/rules-and-regulations>

(B) TIME OF USE (TOU) OPTION:

Customers who select the time of use option will pay a one-time TOU Meter Installation Charge, which is the cost of a TOU meter, plus its installation cost. This Charge is set forth in the City of Santa Clara Municipal Fee Schedule. The manufacturer and model of such meter shall be at the sole discretion of Silicon Valley Power. Time of use periods are as set forth below:

Peak Period: Monday through Saturday, except holidays (New Year's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, Christmas Day), beginning at 6:00 AM and ending at 10:00 PM.

Off-Peak Period: All other hours.

The TOU meter is used to measure kWh usage in the peak and off-peak periods. The ratio of peak kWh to total kWh will be used to determine the portion of the First 800 kWh that falls in the peak period. This ratio will also be used to determine the portion of kWh usage above 800 kWh that falls in the peak period.

(C) UNMETERED SERVICE:

A customer may request electric service under this rate schedule on an unmetered basis, and SVP may, in sole discretion, allow such service if SVP determines (1) customer qualifies to receive service under this rate schedule and an existing unmetered SVP rate schedule does not apply to customer; (2) customer's connected load is less than 385 watts; (3) customer's usage is expected to be constant; and (4) installation of a meter to serve customer's connected load is not practical. If SVP determines customer may receive electric service under this rate schedule on an unmetered basis, customer shall pay the customer charge and the energy charge above. The energy charge shall be assessed on customer's estimated monthly usage which shall be determined as follows: customer's estimated connected load in watts times 8,760, divided by 1000, and then divided by 12. Customer shall be responsible for notifying the SVP not less than 30 days in advance of any change in customer's connected load. Failure to provide such notification may result in the SVP terminating electric service to the customer.

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**CITY OF SANTA CLARA
SILICON VALLEY POWER**

**RATE SCHEDULE CB-1
GENERAL SERVICE DEMAND
METERED**

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DESCRIPTION OF SERVICES:

This schedule is applicable to commercial or industrial services whose monthly use of energy has exceeded 8,000 kWh for three (3) consecutive months, or where the initial connected load indicates use above 8,000 kWh per billing period. Schedule CB-1 will be continued in service until the monthly use of energy has fallen below 6,000 kWh for 12 consecutive months. At that time, and at the option of Silicon Valley Power, Schedule C-1 will be applicable. The Time of Use Option is available to all customers. Customers who utilize the TOU option will be responsible for the installed cost of a TOU meter, if necessary, as set forth in Note (E) below.

RATES:

	<u>Non-Time of Use</u>	<u>Time of Use</u>
<u>CUSTOMER CHARGE</u> , per meter per month	\$100.45	\$100.45

DEMAND CHARGE:

	<u>Non-Time of Use</u>	<u>Time of Use</u>	
		<u>Peak</u>	<u>Off-Peak</u>
All kW of Billing Demand, per kW	\$12.14	\$12.14	\$0.00

ENERGY CHARGE:

	<u>Non-Time of Use</u>	<u>Time of Use</u>	
		<u>Peak</u>	<u>Off-Peak</u>
All kWh, per kWh	\$0.16139	\$0.18490	\$0.14217

SURCHARGES:

Public Benefits Charge and State Surcharge, as set forth in Note D, will be added to the above charges.

NOTES:

(A) MAXIMUM DEMAND:

The Maximum Demand in any month will be the average kW delivery of the 15-minutes interval in which such delivery is greater than in any other 15-minute interval in the month, provided, however, that in case the load is intermittent or subject of violent fluctuations, Silicon Valley Power may use a 5-minute interval instead of a 15-minute interval.

(B) BILLING DEMAND:

The Billing Demand to be used in computing charges under this schedule will be the mean of the Maximum Demand for the current month and the highest such demand occurring in the year ending with current month.

(C) VOLTAGE:

Single-phase or three-phase service on this schedule will be supplied at the secondary voltage

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**CITY OF SANTA CLARA
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**RATE SCHEDULE CB-1
GENERAL SERVICE DEMAND
METERED**

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available, or at the option of the customer, at the primary voltage available, subject to the rules and regulations for electric service.

(D) SURCHARGES:

PUBLIC BENEFITS CHARGE: The Public Benefits Charge is a state required non-bypassable surcharge imposed on all sales of electricity and electrical services. It is used to fund public goods research, development, and demonstration, as well as, energy efficiency activities, and low income assistance programs. The surcharge is equal to the sum of the Customer Charge, Demand Charge and Energy Charge, including adjustment for Primary Voltage and Power Factor, times 0.0285.

STATE SURCHARGE: The state surcharge is required by California state law, and supports funding for the California Energy Commission. The surcharge is equal to kWh billed times the State Surcharge Rate. The current State Surcharge Rate can be found on SVP's website at:

<http://www.siliconvalleypower.com/svp-and-community/rules-and-regulations>

(E) TIME OF USE OPTION:

Customers who select the time of use option will pay a one-time TOU Meter Installation Charge, which reflects the cost difference (including installation) between a non-time of use meter and a time of use meter. This Charge is set forth in the City of Santa Clara Municipal Fee Schedule. The manufacturer and model of such meter shall be at the sole discretion of Silicon Valley Power. Time of use periods are as set forth below:

Peak Period: Monday through Saturday, except NERC (North American Electric Reliability Corporation) Holidays (New Year's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, Christmas Day), beginning at 6:00 AM and ending at 10:00 PM.

Off-Peak Period: All other hours.

The TOU meter is used to measure kWh and kW in the peak and off-peak periods.

(F) PRIMARY VOLTAGE DISCOUNT:

When delivery is made at the same voltage as that of the distribution line from which the service is supplied, a discount of \$1.52 per kW of Billing Demand for 12kV line voltages will be allowed, provided, however, Silicon Valley Power is not required to supply service at a particular line voltage where it has (or will install) ample facilities for supplying at another voltage equally or better suited to the customer's electrical requirements. Silicon Valley Power retains the right to change its line voltage at any time, after reasonable advance notice to any customer receiving a discount hereunder and affected by such change, and such customer then has the option to change their system so as to receive service at the new line

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**CITY OF SANTA CLARA
SILICON VALLEY POWER**

**RATE SCHEDULE CB-1
GENERAL SERVICE DEMAND
METERED**

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voltage or to accept service (without voltage discount) through transformers to be supplied by Silicon Valley Power.

(G) POWER FACTOR:

When the Billing Demand has exceeded 300 kW for three consecutive months and thereafter until it has fallen below 200 kW for twelve consecutive months, bills will be adjusted for weighted monthly average Power Factor as follows:

The sum of Customer Charge, Demand Charge, Energy Charge, Primary Voltage Discount (as applicable) for any month as computed on the above rates will be decreased or increased, respectively, by 0.1 % for each 1 % that the average Power Factor is greater or less than 85%. Such average Power Factor to be computed (to the nearest whole percent) from the ratio of lagging kilovolt-ampere-hours to kilowatt- hours consumed in the month.

(H) OFF-PEAK DEMAND:

All demand occurring between 10:00 PM and 6:00 AM of the following day and on Sundays and NERC Holidays will not be counted in determining the Maximum Demand.

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**CITY OF SANTA CLARA
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**RATE SCHEDULE CB-3
LARGE GENERAL SERVICE DEMAND
METERED**

Sheet 1 of 3

DESCRIPTION OF SERVICE

This schedule is applicable to industrial and commercial services whose monthly billing demands have exceeded 4,000 kilowatts for three consecutive months, or where the initial connected load indicates a demand above 4,000 kilowatts. Customers served under this Schedule CB-3 will be continued in service until the monthly billing demand has fallen below 4,000 kilowatts for 12 consecutive billing periods. The Time of Use Option is available to all customers. Customers who utilize the TOU option will be responsible for the installed cost of a TOU meter, if necessary, as set forth in Note (E) below.

RATES:

	<u>Non-time of use</u>	<u>Time of Use</u>	
<u>CUSTOMER CHARGE – per meter per month</u>	\$100.45	\$100.45	
<u>DEMAND CHARGE:</u>	<u>Non-time of use</u>	<u>Time of Use</u>	
		<u>Peak</u>	<u>Off-Peak</u>
All kW of Billing Demand, per KW	\$16.19	\$16.19	\$0.00
<u>ENERGY CHARGE:</u>	<u>Non-time of use</u>	<u>Time of Use</u>	
		<u>Peak</u>	<u>Off-Peak</u>
All kWh, per kWh	\$0.14864	\$0.17210	\$0.12938

SURCHARGES:

Public Benefits Charge and State Surcharge, as set forth in Note D, will be added to the above charges.

NOTES:

- (A) MAXIMUM DEMAND:
The Maximum Demand in any month will be the average kW delivery of the 15-minute interval in which such delivery greater than in any other 15-minute interval in the month, provided, however, that in case the load is intermittent or subject to violent fluctuations, Silicon Valley Power may use a 5-minute instead of a 15-minute interval.
- (B) BILLING DEMAND:
The Billing Demand to be used in computing charges under this schedule will be the mean of the actual Maximum Demand for the current month and the highest such demand occurring in the year ending with the current month.
- (C) VOLTAGE:
Service on this schedule will be supplied at the primary voltage available or, at the option of Silicon Valley Power, at the secondary voltage available, subject to the rules and regulations for electric service.

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**CITY OF SANTA CLARA
SILICON VALLEY POWER**

**RATE SCHEDULE CB-3
LARGE GENERAL SERVICE DEMAND
METERED**

Sheet 2 of 3

(D) SURCHARGES:

PUBLIC BENEFITS CHARGE:

The Public Benefits Charge is a state required non-bypassable surcharge imposed on all sales of electricity and electrical services. It is used to fund public goods research, development, and demonstration, as well as, energy efficiency activities, and low income assistance programs. The surcharge is equal to the sum of the Customer Charge, Demand Charge, and Energy Charge, including adjustment for Power Factor and Primary Voltage, times 0.0285.

STATE SURCHARGE: The state surcharge is required by California state law, and supports funding for the California Energy Commission. The surcharge is equal to kWh billed times the State Surcharge Rate. The current State Surcharge Rate can be found on SVP's website at:

<http://www.siliconvalleypower.com/svp-and-community/rules-and-regulations>

(E) TIME OF USE OPTION:

Customers who select the time of use option will pay a one-time TOU Meter Installation Charge, which reflects the cost difference (including installation) between a non-time of use meter and a time of use meter. This Charge is set forth in the City of Santa Clara Municipal Fee Schedule. The manufacturer and model of such meter shall be at the sole discretion of Silicon Valley Power. Time of use periods are as set forth below:

Peak Period: Monday through Saturday, except NERC (North American Electric Reliability Corporation) Holidays (New Year's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, Christmas Day), beginning at 6:00 AM and ending at 10:00 PM.

Off-Peak Period: All other hours.

The TOU meter is used to measure kWh and kW in the peak and off-peak periods.

(F) PRIMARY VOLTAGE DISCOUNT:

When delivery is made at the same voltage as that of the distribution line from which the service is supplied, a discount of \$1.52 per kW of Billing Demand for 12kV or higher available line voltages will be allowed, provided, however, Silicon Valley Power is not required to supply service at a particular line voltage where it has (or will install) ample facilities for supplying at another voltage equally or better suited to the customer's electrical requirements. Silicon Valley Power retains the right to change its line voltage at any time, after reasonable advance notice to any customer receiving a discount hereunder and affected by such change, and such customer then has the option to change their system so as to receive service at the new line voltage or to accept service (without voltage discount) through transformers to be supplied by Silicon Valley Power.

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**CITY OF SANTA CLARA
SILICON VALLEY POWER**

**RATE SCHEDULE CB-3
LARGE GENERAL SERVICE DEMAND
METERED**

Sheet 3 of 3

(G) POWER FACTOR:

The sum of Customer Charge, Demand Charge, Energy Charge, Primary Voltage Discount (as applicable) for any month as computed on the above rates will be decreased or increased, respectively, by 0.1 % for each 1 % that the average Power Factor is greater or less than 85%. Such average Power Factor to be computed (to the nearest whole percent) from the ratio of lagging kilovolt-ampere-hours to kilowatt- hours consumed in the month, provided, however, that no Power Factor correction will be made for any month when customer's Maximum Demand is less than 10% of the highest demand in the preceding eleven months.

(H) OFF-PEAK DEMAND:

All demand occurring between 10:00 P.M. and 6:00 A.M. of the following day and on Sundays and NERC Holidays will be ignored in determining the Maximum Demand.

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**CITY OF SANTA CLARA
SILICON VALLEY POWER**

**RATE SCHEDULE CB-6
LARGE COMBINED GENERAL
SERVICE**

Sheet 1 of 3

DESCRIPTION OF SERVICE

This Schedule is optional to Customers who occupy one or more demand-metered service addresses served by Silicon Valley Power (SVP), where electric service from SVP is in Customer's name, and where Customer's combined monthly electric billing demand is 5,000 kW or more. Customers with self-generation may also be subject to Schedule SB-1. Customers who select this rate option will need to provide at least one month written notice and continue with this rate option for at least one year.

RATE OPTIONS:

Non Time of Use

Time of Use

CUSTOMER CHARGE

For Each Service Address – per meter per month

\$468.49

\$468.49

DEMAND CHARGE:

All kW of Billing Demand, per kW:

\$29.52

Peak
\$29.52

Off-Peak
\$0.00

ENERGY CHARGE:

First 5,000,000 kWh, per kWh

\$0.11233

\$0.12255

\$0.10763

Next 10,000,000 kWh, per kWh

\$0.10931

\$0.11953

\$0.10460

Next 5,000,000 kWh, per kWh

\$0.10323

\$0.11346

\$0.09853

Over 20,000,000 kWh, per kWh

\$0.09413

\$0.10436

\$0.08944

SURCHARGES:

Public Benefits Charge and State Surcharge, as set forth in Note E, will be added to the above charges.

NOTES:

(A) MAXIMUM DEMAND

The Maximum Demand in any month will be the sum of the highest average kW delivery, at each service address, of any 15-minute interval occurring between 1:00 PM and 10:00 PM Monday through Saturday, excluding holidays. However, in case the load is intermittent or subject to violent fluctuations, Silicon Valley Power may use a 5-minute interval instead of a 15-minute interval.

(B) BILLING DEMAND

The Billing Demand to be used in computing charges under this schedule will be sum of the mean of the actual Maximum Demand for the current month at each service address and the highest such demand occurring in the year ending with the current month at each service address, but not less than 5,000 kw.

(C) VOLTAGE ADJUSTMENT:

For each Service Address served at less than 12,000 volts, the Demand Charge will be increased by \$1.52 per kW. For each Service Address served at 60,000 volts directly from a customer owned

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SILICON VALLEY POWER**

**RATE SCHEDULE CB-6
LARGE COMBINED GENERAL
SERVICE**

Sheet 2 of 3

substation or from a SVP-owned substation directly paid for by customer, the Demand Charge will be reduced by \$1.90 per kW. However, Silicon Valley Power is not required to supply service at a particular line voltage where it has (or will install) ample facilities for supplying at another voltage equally or better suited to the customer's electrical requirements. Silicon Valley Power retains the right to change its line voltage at any time, after reasonable advance notice to any customer receiving a discount hereunder and affected by such change, and such customer then has the option to change their system so as to receive service at the new line voltage or to accept service (without voltage discount) through transformers to be supplied by Silicon Valley Power.

(D) POWER FACTOR:

For each service address where Billing Demand has exceeded 300 kW for three consecutive months, bills will be adjusted for weighted monthly average Power Factor as follows: the sum of Customer Charge, Demand Charge, Energy Charge, Secondary Voltage Adjustment (as applicable) and 60kV Delivery Adjustment (as applicable) for any month as computed on the above rates will be decreased or increased, respectively, by 0.1 % for each 1 % that the average Power Factor is greater or less than 85%. Such average Power Factor to be computed (to the nearest whole percent) from the ratio of lagging kilovolt-ampere-hours to kilowatt- hours consumed in the month, provided, however, that no Power Factor correction will be made for any month when the Maximum Demand of such service address, is less than 10% of the highest demand in the preceding eleven months.

Power Factor Adjustment will be discontinued for any service address that falls below 200 kW for 12 consecutive months.

(E) SURCHARGES:

PUBLIC BENEFITS CHARGE:

The Public Benefits Charge is a state required non-bypassable surcharge on all sales of electricity and electrical services. It is used to fund public goods research, development, and demonstration, as well as, energy efficiency activities, renewable energy, and low income assistance programs. The surcharge is equal to the sum of the Customer Charge, Demand Charge, Energy Charge, Voltage and Power Factor Adjustment, times 0.0285.

STATE SURCHARGE:

The State Surcharge is required by California state law, and supports funding for the California Energy Commission. The surcharge is equal to kWh billed times the State Surcharge Rate. The current State Surcharge Rate can be found on SVP's website at:

<http://www.siliconvalleypower.com/svp-and-community/rules-and-regulations>

(F) CALCULATION OF ENERGY CHARGES AT EACH SERVICE ADDRESS:

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**CITY OF SANTA CLARA
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**RATE SCHEDULE CB-6
LARGE COMBINED GENERAL
SERVICE**

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The energy charges calculated under this Schedule CB-6 will be apportioned to each service address as follows:

1. Energy Charges for each service address will be determined as the ratio of the kWh usage at each service address divided by the sum of kWh usage at all applicable service addresses.
2. After such apportionment, each service address will be subject to the applicable Voltage Adjustment, Power Factor Adjustment, Public Benefits Charge and State Surcharge provisions set forth above.
3. Payment for bills rendered at each service address shall be made by wire transfer, automated clearing house (ACH) transfer, check or credit card. Payments made by credit card will be subject to the applicable credit card transaction fees.

(G) TIME OF USE OPTION:

Customers who select the time of use option will need to provide at least one month written notice and continue with this option for at least one year. Customers who select the time of use option will pay a one-time TOU Meter Installation Charge, which reflects the cost difference (including installation) between a non-time of use meter and a time of use meter. This Charge is set forth in the City of Santa Clara Municipal Fee Schedule. The manufacturer and model of such meter shall be at the sole discretion of Silicon Valley Power. Time of use periods are as set forth below:

Peak Period: Monday through Saturday, except holidays (New Year's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, Christmas Day), beginning at 1:00 PM and ending at 10:00 PM.

Off-Peak Period: All other hours. The TOU meter is used to measure kWh and kW in the peak and off-peak period.

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CITY OF SANTA CLARA

RATE SCHEDULE CB-7 LARGE COMBINED GENERAL SERVICE – MARKET BASED OPTION

Sheet 1 of 6

DESCRIPTION OF SERVICE

This Schedule is optional to Customers who occupy one or more demand-metered service addresses served by Silicon Valley Power (SVP), where electric service from SVP is in Customer's name, and where Customer's combined monthly electric billing demand is 5,000 kW or more. Customers with self-generation may also be subject to Schedule SB-1. Under this Schedule, Customers may designate a portion of their monthly energy purchased from SVP to be priced based on Note H. Customer who select this rate option will continue with this option for the full kWh volume subscribed for at least one year. Customer must also provide at least three months' written notice to terminate this option and to be billed under other applicable rate schedule. The total combined energy for all SVP customers that may be served under this rate schedule is 30,000,000 kWh per month.

RATE OPTIONS:

Non Time of Use

Time of Use

CUSTOMER CHARGE

For Each Service Address – per meter per month

\$468.49

\$468.49

DEMAND CHARGE:

All kW of Billing Demand, per kW:

\$29.52

Peak

\$29.52

Off-Peak

\$0.00

ENERGY CHARGE:

First 5,000,000 kWh, per kWh

\$0.11233

\$0.12255

\$0.10763

Next 10,000,000 kWh, per kWh

\$0.10931

\$0.11953

\$0.10460

Next 5,000,000 kWh, per kWh

\$0.10323

\$0.11346

\$0.09853

Over 20,000,000 kWh, per kWh

\$0.09413

\$0.10436

\$0.08944

MARKET-BASED PRICING ADJUSTMENT:

See NOTE H

SURCHARGES:

Public Benefits Charge and State Surcharge, as set forth in Note E, will be added to the above charges.

NOTES:

(A) MAXIMUM DEMAND

The Maximum Demand in any month will be the sum of the highest average kW delivery, at each service address, of any 15-minute interval occurring between 1:00 PM and 10:00 PM Monday through Saturday, excluding holidays. However, in case the load is intermittent or subject to violent fluctuations, Silicon Valley Power may use a 5-minute interval instead of a 15-minute interval.

(B) BILLING DEMAND

The Billing Demand to be used in computing charges under this schedule will be sum of the mean of the actual Maximum Demand for the current month at each service address and the highest such

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RATE SCHEDULE CB-7 LARGE COMBINED GENERAL SERVICE – MARKET BASED OPTION

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demand occurring in the year ending with the current month at each service address, but not less than 5,000 KW.

(C) VOLTAGE ADJUSTMENT:

For each Service Address served at less than 12,000 volts, the Demand Charge will be increased by \$1.52 per kW. For each Service Address served at 60,000 volts directly from a customer owned substation or from a SVP-owned substation directly paid for by customer, the Demand Charge will be reduced by \$1.90 per kW. However, Silicon Valley Power is not required to supply service at a particular line voltage where it has (or will install) ample facilities for supplying at another voltage equally or better suited to the customer's electrical requirements. Silicon Valley Power retains the right to change its line voltage at any time, after reasonable advance notice to any customer receiving a discount hereunder and affected by such change, and such customer then has the option to change their system so as to receive service at the new line voltage or to accept service (without voltage discount) through transformers to be supplied by Silicon Valley Power.

(D) POWER FACTOR ADJUSTMENT:

For each service address where Billing Demand has exceeded 300 kW for three consecutive months bills will be adjusted for weighted monthly average Power Factor as follows: the sum of Customer Charge, Demand Charge, Energy Charge, Secondary Voltage Adjustment (as applicable) and 60kV Delivery Adjustment (as applicable) for any month as computed on the above rates will be decreased or increased, respectively, by 0.1 % for each 1 % that the average Power Factor is greater or less than 85%. Such average Power Factor to be computed (to the nearest whole percent) from the ratio of lagging kilovolt-ampere-hours to kilowatt- hours consumed in the month, provided, however, that no Power Factor correction will be made for any month when the Maximum Demand of such service address, is less than 10% of the highest demand in the preceding eleven months.

Power Factor Adjustment will be discontinued for any service address that falls below 200 kW for 12 consecutive months.

(E) SURCHARGES:

PUBLIC BENEFITS CHARGE:

The Public Benefits Charge is a state required non-bypassable surcharge on all sales of electricity and electrical services. It is used to fund public goods research, development, and demonstration, as well as, energy efficiency activities, renewable energy, and low income assistance programs. The surcharge is equal to the sum of the Meter Charge and Capacity Reservation Charge, times 0.0285.

STATE SURCHARGE:

The State Surcharge is required by California state law, and supports funding for the California Energy Commission. The surcharge is equal to kWh billed times the State Surcharge Rate. The current State

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Surcharge Rate can be found on SVP's website at:

<http://www.siliconvalleypower.com/svp-and-community/rules-and-regulations>

(F) CALCULATION OF ENERGY CHARGES AT EACH SERVICE ADDRESS:

The energy charges calculated under this Schedule CB-7 will be apportioned to each service address as follows:

1. Energy Charges for each service address will be determined as the ratio of the kWh usage at each service address divided by the sum of kWh usage at all applicable service addresses.
2. After such apportionment, each service address will be subject to the applicable Voltage Adjustment, Power Factor Adjustment, Public Benefits Charge and State Surcharge provisions set forth above.
3. Payment for bills rendered at each service address shall be made by wire transfer, automated clearing house (ACH) transfer, check or credit card. Payments made by credit card will be subject to the applicable credit card transaction fees.

(G) TIME OF USE OPTION:

Customers who select the time of use option will need to provide at least one month written notice and continue with this option for at least one year. Customers who select the time of use option will pay a one-time TOU Meter Installation Charge, which reflects the cost difference (including installation) between a non-time of use meter and a time of use meter. This Charge is set forth in the City of Santa Clara Municipal Fee Schedule. The manufacturer and model of such meter shall be at the sole discretion of Silicon Valley Power. Time of use periods are as set forth below:

Peak Period: Monday through Saturday, except holidays (New Year's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, Christmas Day), beginning at 1:00 PM and ending at 10:00 PM.

Off-Peak Period: All other hours. The TOU meter is used to measure kWh and kW in the peak and off-peak period.

(H) MARKET BASED PRICING ADJUSTMENT (MBPA):

Upon at least 30 days' notice, customers may designate up to 100%, but not less than 2,000,000 kWh of their monthly usage to be priced based on market indices as set forth below. The total combined amount of energy that may be available (Total Available) to all Customers under this MBPA shall be determined solely by SVP and it's on a first come first serve basis. SVP shall give 90 days' notice of any change in such total amount, and endeavor to make such changes effective January 1 of each calendar year. If the Total Available is changed to an amount lower than actually being allowed, SVP will reduce existing customers' allowable amounts on a prorated basis, and this schedule will be closed to new customers.

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RATE SCHEDULE CB-7 LARGE COMBINED GENERAL SERVICE – MARKET BASED OPTION

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Market Based Pricing Adjustment is calculated as the Market Cost Adjustment Rate times the full kWh subscribed under this rate option. The Market Cost Adjustment Rate is the Current Market Cost of Energy minus the Base Energy Rate. Such difference may be positive or negative.

The Current Market Cost of Energy is determined as set forth in the CB-7 Market Based Option Bill Determinants attached here and as posted. The Current Market Cost of Energy for each calendar month will be sent to Customer served under this option with the monthly bill.

The Base Energy Rate is reflected in the above Energy Charge rates, and is SVP's determination of the annualized unit cost that a creditworthy customer would incur for receiving bundled energy with renewable and GHG characteristics from publicly owned energy service providers like SVP. The Base Energy Rate will be updated annually in conjunction with changes in the Energy Charge rates.

The Market Based Pricing Adjustment, which can be positive or negative, will be applied to the Energy Charge prior to Voltage Adjustment, Power Factor Adjustment and Surcharges.

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RATE SCHEDULE CB-7 LARGE COMBINED GENERAL SERVICE – MARKET BASED OPTION

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CB-7 MARKET BASED OPTION BILL DETERMINANTS

The total combined amount of energy that is available (Total Available) to all Customers under MBPA for Calendar Year 2026 is **30,000,000 kWh per month**.

Base Energy Rate for Calendar Year 2026 is \$0.08753 per kWh.

Current Market Cost of Energy includes:

1. PG&E Hourly DLAP Price which is the CAISO DLAP_PGAE - APND for the Day Ahead Market (DAM). If any hourly DLAP Price is less than zero, the effective DLAP price for such hour shall be zero.
2. Transmission loss which is 2% of PG&E Hourly DLAP price calculated above.
3. CAISO High Voltage Transmission Access Charge (“HV TAC”) for month (\$/MWh)

The CAISO HV TAC price is the daily average PG&E effective HV TAC rate for Santa Clara for the applicable month, and is obtained using the following site(s) information:

<http://www.caiso.com/market/Pages/Settlements/Default.aspx>

4. CAISO Low Voltage Transmission Access Charge (“LV TAC”) price is the daily average PG&E effective LV TAC rate for Santa Clara for the applicable month, and is obtained using the following site(s) information:

<http://www.caiso.com/market/Pages/Settlements/Default.aspx>.

5. Market Price of Renewable Energy Credit =

Market price of RECs for Month * 50% (SVP applicable RPS percentage for current compliance year)

The average monthly market price of RECs is obtained using the following site(s) information:

The data for California Bucket 1, 2, and 3 RECs are obtained from Megawatt Daily. The average monthly market price is then calculated based on SVP weighted average for Bucket 1, 2 and 3 RECs. For current compliance year, the Bucket 1 is 75%, Bucket 2 is 15% and Bucket 3 is 10%.

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RATE SCHEDULE CB-7 LARGE COMBINED GENERAL SERVICE – MARKET BASED OPTION
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6. CAISO Grid Management Charge (“GMC”) (\$/MWh) = Charge Code 4560 (Market Services Charge) + Charge Code 4561 (System Operations Charge)

The CAISO GMC is obtained using the following site(s) information (and will be updated as it is updated at the CAISO:

<http://www.caiso.com/market/Pages/Settlements/Default.aspx>

If any of the sources for the above described rate components are no longer available, SVP will diligently seek an alternative but equivalent source for that rate component.

If new or additional components affect the Current Market Cost of Energy due to new legislation or other circumstances, bill determinants will be added or adjusted to reflecting any impacting mandates or regulations. Customers will be provided notification of such additions or adjustments no less than 30 days prior to implementation. .

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**CITY OF SANTA CLARA
SILICON VALLEY POWER**

RATE SCHEDULE CB-8 CUSTOMER LOAD RETENTION	Sheet 1 of 1
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DESCRIPTION OF SERVICE

This rate schedule is available to customers eligible for service under Schedules CB-6 or CB-7 who, but for the provisions of this rate schedule, would cease operations in the City of Santa Clara, and would not engage in any substantially similar operation in the State of California for a period of at least five years. Customer must submit a signed affidavit attesting to this effect. The cumulative maximum billing demand for all SVP customers that may be served under this rate schedule at any one time is 20,000 kW.

RATES:

Customers' bills under Schedule CB-6 or CB-7, prior to Public Benefit Charge and State Surcharge, will be reduced by up to 12% for a period of not more than five years. The effective percentage reduction and the term of such percentage reduction, will be as approved by the Chief Electric Utility Officer.

NOTES:

1. **Marginal Cost to Serve:**
In no event shall service under this rate schedule result in customer being served at less than SVP's marginal cost of providing service to said customer.
2. **Forfeiture of Discounts:**
If a customer fails to comply with the terms of this rate schedule, SVP will seek repayment of the dollar amount of all discounts provided under this rate schedule.
3. **First Come, First Served:**
This rate schedule is available on a first come, first served basis on a monthly basis. However, preference will be given to customers with a long history of doing business in Santa Clara, to customers that help SVP maintain a diversified sales base, and to the number and type of jobs that may be preserved.

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**CITY OF SANTA CLARA
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**RATE SCHEDULE D-1
DOMESTIC SERVICE**

Sheet 1 of 2

DESCRIPTION OF SERVICE

This schedule is applicable to single phase residential service for single-family dwellings, condominium house meters, townhouse house meters, cooperative apartment house meters, flats and apartments separately metered by Silicon Valley Power. The Time of Use (TOU) Option is available to all customers. Customers who utilize the TOU option will be responsible for the installed cost of a TOU meter, as set forth in Note (B) below.

This schedule is not applicable for services to common areas of apartment houses.

RATES:

Non-Time of Use

Time of Use Option

METER CHARGE, per meter per month

\$5.11

\$5.11

ENERGY CHARGE (to be added to the Customer Charge)

Non-Time of Use

Time of Use Option

Peak

Off-Peak

First 300 kWh, per kWh

\$0.15612

\$0.17960

\$0.13690

Excess Over 300 kWh, per kWh

\$0.17946

\$0.20295

\$0.16023

SURCHARGES

Public Benefits Charge and State Surcharge, as set forth in Note A, will be added to the above charges.

NOTES:

(A) SURCHARGES:

PUBLIC BENEFITS CHARGE: The Public Benefits Charge is a state required non-bypassable surcharge imposed on all sales of electricity and electrical services. It is used to fund public goods research, development, and demonstration, as well as, energy efficiency activities, renewable energy and low income assistance programs. The surcharge is equal to the sum of the Meter Charge and the Energy Charge times 0.0285.

STATE SURCHARGE: The state surcharge is required by California state law, and supports funding for the California Energy Commission. The surcharge is equal to kWh billed times the State Surcharge Rate. The current State Surcharge Rate can be found on SVP's website at:

<http://www.siliconvalleypower.com/svp-and-community/rules-and-regulations>

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**CITY OF SANTA CLARA
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**RATE SCHEDULE D-1
DOMESTIC SERVICE**

Sheet 2 of 2

(B) TIME OF USE (TOU) OPTION:

Customers who select the time of use option will pay a one-time TOU Meter Installation Charge, which is the cost of a TOU meter, plus its installation cost. This Charge is set forth in the City of Santa Clara Municipal Fee Schedule. The manufacturer and model of such meter shall be at the sole discretion of Silicon Valley Power. Time of use periods are as set forth below:

Peak Period: Monday through Saturday, except holidays (New Year's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, Christmas Day), beginning at 6:00 AM and ending at 10:00 PM.

Off-Peak Period: All other hours.

The TOU meter is used to measure kWh usage in the peak and off-peak periods. The ratio of peak kWh to total kWh will be used to determine the portion of the First 300 kWh that falls in the peak period. This ratio will also be used to determine the portion of kWh usage above 300 kWh that falls in the peak period.

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**CITY OF SANTA CLARA
SILICON VALLEY POWER**

**RATE SCHEDULE IC
IRRIGATION CONTROLLER SERVICE**

Sheet 1 of 2

APPLICATION:

This schedule is applicable to non-metered service to irrigation controller or sprinkler controllers located either in public streets, highways, and places, or private areas.

RATES:

SERVICE CHARGE:

For each sprinkler or irrigation controller \$10.36 per unit per month

MINIMUM CHARGE:

\$10.36 per month

SURCHARGES:

Public Benefits Charge and State Surcharge, as set forth in Note A, are included in the above charge.

NOTES:

(A) SURCHARGES:

PUBLIC BENEFITS CHARGE:

The Public Benefits Charge is a state required non-bypassable surcharge imposed on all sales of electricity and electrical services. It is used to fund public goods research, development, and demonstration, as well as, energy efficiency activities, renewable energy, and low income assistance programs. The surcharge is equal to 2.85% of the otherwise applicable rate.

STATE SURCHARGE: The state surcharge is required by California state law, and supports funding for the California Energy Commission. The surcharge is equal to estimated kWh per controller times the State Surcharge Rate. The current State Surcharge Rate can be found on SVP's website at:

<http://www.siliconvalleypower.com/svp-and-community/rules-and-regulations>

(B) TYPE OF SERVICE:

Energy will be supplied at 120 volts, single phase, two wire service. Where only other voltages are available, applicant shall pay, in advance, Silicon Valley Power's cost to convert from the available voltage to 120 volts.

(C) POINT OF DELIVERY:

Delivery will be made from Silicon Valley Power's existing electric lines at a point mutually agreed upon, without extension thereof to customer's system.

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**CITY OF SANTA CLARA
SILICON VALLEY POWER**

RATE SCHEDULE IC IRRIGATION CONTROLLER SERVICE	Sheet 2 of 2
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- (D) SERVICE CONNECTION:
Silicon Valley Power will provide overhead or underground service in accordance with the current Rules and Regulations for Electric Service. However, applicant shall pay to Silicon Valley Power, in advance, the amount, if any, by which Silicon Valley Power's costs to provide underground service exceeds its cost to provide an overhead service.
- (E) MAINTENANCE:
Maintenance will be performed by the customer.

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**CITY OF SANTA CLARA
SILICON VALLEY POWER**

**RATE SCHEDULE SL-1
STREET AND HIGHWAY LIGHTING**

Sheet 1 of 4

APPLICATION:

This schedule is applicable for service to street and highway lighting systems which illuminate publicly-dedicated streets and highways by means of incandescent filament, mercury vapor, or high pressure sodium vapor lamps. This schedule is applicable only to those instances where the customer owns the lighting fixtures, street light supporting structure and interconnecting circuits.

CLASSES OF SERVICES OFFERED:

- Class A. Silicon Valley Power provides energy and switching* only.
- Class B. Silicon Valley Power provides energy, switching* and maintenance service for lamps and glass.
- Class C. Silicon Valley Power provides energy, switching* and maintenance service for complete lighting system.

BURNING SCHEDULE: All night (unless otherwise specified).

RATES (Per Lamp)

<u>Incandescent Lamps</u>		<u>kWh\lamp</u>	<u>Class A</u>	<u>Class B</u>	<u>Class C</u>	<u>Half-hour Adjustment (All Classes)</u>
4,000 lumens		94	\$29.41	\$32.12	\$33.72	\$0.710
6,000 lumens		130	\$41.52	\$44.11	\$46.04	\$0.970
<u>Mercury Vapor Lamps</u>						
<u>Watts</u>	<u>Initial lumens</u>					
175	7,500	61	\$22.31	\$23.70	\$25.90	\$0.500
250	11,000	88	\$30.82	\$32.55	\$34.81	\$0.680
400	21,500	140	\$46.92	\$48.51	\$50.69	\$1.050
700	37,000	245	\$77.96	\$81.21	\$83.49	\$1.820
1,000	57,000	350	\$110.28	\$113.14	\$115.32	\$2.550

* Switching Service is closed to new installations.

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**RATE SCHEDULE SL-1
STREET AND HIGHWAY LIGHTING**

Sheet 2 of 4

High Pressure Sodium Vapor Lamps

<u>Watts</u>	<u>Initial lumens</u>	<u>kWh/lamp</u>	<u>Class A</u>	<u>Class B</u>	<u>Class C</u>	<u>Half-hour Adjustment (All Classes)</u>
100	8,500	35	\$11.74	\$14.57	\$16.72	\$0.310
150	16,000	53	\$21.90	\$25.24	\$26.93	\$0.490
250	30,000	88	\$34.03	\$41.28	\$43.44	\$0.750
400	50,000	140	\$49.15	\$54.12	\$56.36	\$1.120

SURCHARGES:

The above rates include an adjustment for a Public Benefits Charge and State Surcharge as defined in Note A.

NOTES:

(A) **SURCHARGES:**

PUBLIC BENEFITS CHARGE:

The Public Benefits Charge is a state required non-bypassable surcharge imposed on all sales of electricity and electrical services. It is used to fund public goods research, development, and demonstration, as well as, energy efficiency activities, renewable energy, and low income assistance programs. The surcharge is equal to 2.85% of the otherwise applicable rate.

STATE SURCHARGE: The state surcharge is required by California state law, and supports funding for the California Energy Commission. The surcharge is equal to kWh billed times the State Surcharge Rate. The current State Surcharge Rate can be found on SVP's website at:

<http://www.siliconvalleypower.com/svp-and-community/rules-and-regulations>

(C) **TYPE OF SERVICE:**

This rate schedule is applicable to multiple street lighting systems. Multiple current will be supplied at nominal voltage level of 120/240 volts or 120/208 volts at the discretion of Silicon Valley Power, three-wire, single phase.

(D) **ANNUAL OPERATING SCHEDULES:**

The above rates for All-Night service assume 11 hours operation per night and apply to lamps which will be turned on and off once each night in accordance with a regular operating schedule agreeable to the customer but not exceeding 4,100 hours per year.

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**RATE SCHEDULE SL-1
STREET AND HIGHWAY LIGHTING**

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(E) OPERATING SCHEDULES OTHER THAN ALL-NIGHT:

Rates for regular operating schedules other than full all-night will be the All-Night rate plus or minus, respectively, the half-hour adjustment for each half-hour more or less than an average of 11 hours per night. This adjustment will apply only to lamps on regular operating schedules of not less than 1,095 hours per year, or 3 hours per night, nor more than 4,500 hours per year.

(F) OVERHEAD DELIVERY POINT:

Delivery will be made from Silicon Valley Power's existing overhead lines without extension to the customer's system or at a point mutually agreed upon, not to exceed 150 feet except in special situations at Silicon Valley Power's convenience. Silicon Valley Power will provide at its expense an overhead service drop to a customer-owned inter-connected group of lamps having a connected load of not less than 2 kW. For a customer-owned inter-connected group of lamps having a connected load of less than 2 kW or individual customer electroliers with a self-contained photo cell switch, Silicon Valley Power will connect the customer's overhead service wire to Silicon Valley Power's overhead lines at the customer's expense.

(G) UNDERGROUND SERVICE:

Silicon Valley Power will provide underground service connection to a mutually agreed upon point from its overhead or underground system to one electrolier of each group of interconnected electroliers provided that the lighting system has been arranged for the least number of practical service points, there is at least 3 kW of connected load, and there are at least ten electroliers in the group. This service connection shall not exceed 25 feet from the base of the Silicon Valley Power pole in an overhead line or 40 feet of an underground line. In the event distances exceed 25 feet from a pole in an overhead system or 40 feet in an underground system, customer shall pay to Silicon Valley Power the actual expense of extending the underground feeder circuitry to the point of connection to Silicon Valley Power's overhead or underground system. In the event the customer requests service to a system of less than 10 electroliers, or less than 3 kW of connected load, customer shall install and own the extension from his system to Silicon Valley Power's distribution system and shall pay Silicon Valley Power the actual costs of connection to the system.

(H) MAINTENANCE:

Class B and C rates include all labor and material necessary for the cleaning or replacement of lamps and glassware, but is limited to glassware such as is commonly used and manufactured in reasonably large quantities. Charges will be made for lamps or glassware requiring replacement more than two (2) times in one year. Under Class C rates Silicon Valley Power will also isolate any trouble in customer's system which has resulted in outages or diminished light output. Silicon Valley Power will make necessary repairs without replacement on accessible wiring between poles and on equipment and wiring in and on poles to keep the system in

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**CITY OF SANTA CLARA
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**RATE SCHEDULE SL-1
STREET AND HIGHWAY LIGHTING**

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operating condition. Silicon Valley Power will provide labor for the replacement of material such as ballast's, photo-electric controls, relays, fixtures, individual poles, individual cable runs between poles where such runs are in conduit, and other individual parts of the system. The customer shall compensate Silicon Valley Power for any materials furnished. The Class C rate does not provide for any major excavation or any major replacement at Silicon Valley Power's expense of circuits, conduits, poles or fixtures owned by the customer.

This schedule does not provide for maintenance to low pressure sodium vapor or metal halide lamps; however, at the request of the customer, Silicon Valley Power will perform any of the routine maintenance described above on a time and material cost basis provided Silicon Valley Power's regular standard maintenance equipment and procedures can be used.

(I) LAMPS OTHER THAN STANDARDS:

Lamps other than the standard types and wattages referred to above may be used in Class A service only and will be billed at an average rate per watt per month of \$ 0.15. LED street lighting falls in this category.

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**CITY OF SANTA CLARA
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**RATE SCHEDULE SL-2
PRIVATE OUTDOOR AREA
LIGHTING SERVICE**

Sheet 1 of 3

APPLICATION

This schedule is applicable to private all night outdoor area lighting service which illuminates privately-owned lands and property supplied from an overhead source. This schedule is applicable only to those instances where Silicon Valley Power installs, owns and maintains all facilities required to service in accordance with the Municipal Code of the City of Santa Clara and the Rules and Regulations for Electric Service. Service to lamps hereunder shall be continuous and temporary disconnection shall not be made.

BURNING SCHEDULE:

Each lamp shall be turned on and off once each night from dusk to dawn in accordance with a regular burning schedule, not to exceed forty-one hundred (4,100) hours per year.

RATES:

	<u>Rate per Lamp Per Month</u>
250 Watt mercury-vapor floodlight or 150 Watt high pressure sodium vapor floodlight	\$47.39

This rate schedule is applicable to alternating current service at a frequency of approximately 60 cycles, 120 or 240 volts, single phase. The 250 Watt mercury-vapor floodlamp type luminaire shall be mounted from a bracket attached or supported to Silicon Valley Power-owned wood poles and actuated by a photo-electric cell.

SURCHARGES:

Public Benefits Charge and State Surcharge, as defined below in Note A, is included in the above charge.

Public Benefits Charge	\$1.34
State Surcharge	<u>\$0.02</u>
Total	\$1.36 per Lamp

NOTES:

(A) SURCHARGES:

PUBLIC BENEFITS CHARGE:

The Public Benefits Charge is a state required non-bypassable surcharge imposed on all sales of electricity and electrical services. It is used to fund public goods research, development, and demonstration, as well as, energy efficiency activities, renewable energy, and low income assistance programs. The surcharge is equal to 2.85% of the otherwise applicable rate.

STATE SURCHARGE:

The state surcharge is required by California state law, and supports funding for the California Energy Commission. The surcharge is equal to estimated kWh per lamp times the State Surcharge Rate. The

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**CITY OF SANTA CLARA
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**RATE SCHEDULE SL-2
PRIVATE OUTDOOR AREA
LIGHTING SERVICE**

Sheet 2 of 3

current State Surcharge Rate can be found on SVP's website at:

<http://www.siliconvalleypower.com/svp-and-community/rules-and-regulations>

(B) BILLING:

Presentation of billing shall coincide with that of the customer's primary premise account, where such account exists at the same location and no bill will be rendered for the first partial month of service. If the customer does not have a primary premise account, a monthly bill shall be prepared and presented in accordance with the rate and terms of this schedule.

No credit will be given for non-burning lamp time resulting from a fixture failure of any cause which is repaired by Silicon Valley Power in a reasonable period of time. No billing shall be apportioned among two or more customers or tenants. At the customer's option, charges may be paid in advance.

(C) CONTRACTS:

When service is requested by a tenant under this schedule, Silicon Valley Power may require the property owner(s) to enter into a contract with Silicon Valley Power concerning placement of special lighting facilities before service is established.

(D) NOTIFICATION AND REMOVAL:

The latest effective Schedule SL-2 is applicable until canceled on thirty (30) days prior written notice by the customer, or by Silicon Valley Power, at which time the light will be removed.

(E) INSTALLATION - MATERIALS AND MAINTENANCE:

Silicon Valley Power will not install floodlight luminaries for private use at the rate established in this schedule on anything but Silicon Valley Power's wood poles, supporting lines and guys existing on easement for Silicon Valley Power facilities.

Silicon Valley Power will not install any material for private use other than the floodlight, mastarm or bracket, and necessary wire, moulding and other materials necessary to connect energy to the floodlight from the secondary line. Said installation shall not exceed an extension of ten (10) feet, including the mastarm or bracket from the pole measured at right angles to the secondary line.

Upon receipt of notice from a customer of the failure of a lamp to operate as scheduled, Silicon Valley Power will, within a reasonable period of time, make the necessary repairs during normal working hours. It shall be the responsibility of the customer to notify Silicon Valley Power of any malfunctions.

(F) EXTENDING SECONDARY:

Silicon Valley Power shall extend its secondary lines one span to supply energy not to exceed 150 feet to the mercury-vapor floodlight at the basic rate in this schedule at no extra cost to the customer.

Additional extensions of secondary facilities shall be limited to three spans, but not to exceed six hundred

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RATE SCHEDULE SL-2 PRIVATE OUTDOOR AREA LIGHTING SERVICE	Sheet 3 of 3
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(600) feet total. The cost of the material, labor and equipment for such extension shall be computed and added to the billing for the first month.

- (G) RELOCATION:
Silicon Valley Power shall, upon customer's written request, relocate its lighting facilities, provided that the customer reimburses Silicon Valley Power for all costs incurred by Silicon Valley Power to complete such relocation.

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**CITY OF SANTA CLARA
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**RATE SCHEDULE TC
TRAFFIC CONTROL SERVICE**

Sheet 1 of 2

APPLICATION:

This schedule is applicable to non-metered service for traffic directional sign or signal lighting systems owned by governmental agencies and located on outdoor publicly owned street, highways and places.

RATES:

SERVICE CHARGE:

For each Standard Service Connection:	\$31.11 per 2 or 3-signal head per month \$31.11 per pedestrian signal unit per month
Minimum Charge:	\$31.11 per month
For each Red LED Service Connection:	\$22.71 per 2 or 3-signal head per month \$22.71 per pedestrian signal unit per month
Minimum Charge:	\$22.71 per month
For each Red and Green LED Service Connection:	\$16.47 per 2 or 3-signal head per month \$16.47 per pedestrian signal unit per month
Minimum Charge:	\$16.47 per month

SURCHARGES:

Public Benefits Charge and State Surcharge, as defined below in Note A, are included in the above charges.

	<u>Standard</u>	<u>Red LED</u>	<u>Red + Green LED</u>
Public Benefits Charge	\$0.85	\$0.55	\$0.48
State Surcharge	<u>\$0.01</u>	<u>\$0.01</u>	<u>\$0.00</u>
Total	\$0.86	\$0.56	\$0.48

NOTES:

(A) SURCHARGES:

PUBLIC BENEFITS CHARGE:

The Public Benefits Charge is a non-bypassable surcharge imposed on all sales of electricity and electrical services. It is used to fund public goods research, development, and demonstration, as well as, energy efficiency activities, and low income assistance programs. The surcharge is equal to 2.85% of the otherwise applicable rate.

STATE SURCHARGE: The state surcharge is required by California state law, and supports funding for the California Energy Commission. The amount included is equal to estimated kWh per signal head times the State Surcharge Rate. The current State Surcharge Rate can be found on SVP's website at:

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**RATE SCHEDULE TC
TRAFFIC CONTROL SERVICE**

Sheet 2 of 2

<http://www.siliconvalleypower.com/svp-and-community/rules-and-regulations>

- (B) TYPE OF SERVICE:
Energy will be supplied at 120/240 volt single phase service (120/208 volts star in certain localities) unless the customer pays the additional initial cost of a 277/480 volt supply. However, service at 277/480 volts from underground systems will be made available only for new services at the option of Silicon Valley Power when this type of service is practical from Silicon Valley Power's engineering standpoint.
- (C) POINT OF DELIVERY:
Delivery will be made from Silicon Valley Power's existing electric lines at a point mutually agreed upon, without extension thereof to customer's system.
- (D) SERVICE CONNECTION:
Silicon Valley Power will provide, at its expense, an overhead service drop to the customer-owned system; however, where the customer requests and underground service the customer will install and own the extension from his system to the Silicon Valley Power's nearest junction box or to the base of the pole where service is readily available and will pay the amount, if any, by which the cost of connecting to the Silicon Valley Power's distribution system exceeds the cost of an overhead service drop.
- (E) METERING:
Each point of delivery will be billed separately.
- (F) SWITCHING AND MAINTENANCE:
Switching and maintenance will be performed by the customer.

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**CITY OF SANTA CLARA
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**RATE SCHEDULE TS-1
NON-METERED TRANSIT SHELTER
ADVERTISEMENT LIGHTING**

Sheet 1 of 1

DESCRIPTION OF SERVICE:

This rate schedule is applicable to non-metered service provided for transit shelter advertisement lighting on public streets, highways, other public places, and private areas. Under this schedule, each transit shelter with a lighted advertisement feature shall contain no more than a single six-foot, four-lamp high-output fluorescent lighting fixture, or equivalent fixture with a wattage rating of not more than 385 watts, and shall be photosensor controlled so as to provide illumination from dusk to dawn.

RATES:

For each Transit Shelter	\$48.91 per fixture per month
Advertisement Lighting Fixture	

SURCHARGES:

Public Benefits Charge and State Surcharge, as set forth below in Note A, is included in the above charge.

Public Benefits Charge	\$1.36
State Surcharge	<u>\$0.02</u>
Total	\$1.38 per fixture

NOTES:

(A) SURCHARGES:

PUBLIC BENEFITS CHARGE:

The Public Benefits Charge is a non-bypassable surcharge imposed on all sales of electricity and electrical services. It is used to fund public goods research, development, and demonstration, as well as, energy efficiency activities, renewable energy, and low income assistance programs. The amount included is equal to 2.85% of the otherwise applicable rate.

STATE SURCHARGE: The state surcharge is required by California state law, and supports funding for the California Energy Commission. The surcharge is equal to estimated kWh per shelter times the State Surcharge Rate. The current State Surcharge Rate can be found on SVP's website at:

<http://www.siliconvalleypower.com/svp-and-community/rules-and-regulations>

(B) POINT OF DELIVERY:

Delivery will be made from Silicon Valley Power's existing electric lines at a point mutually agreed upon, without extension thereof to customer's system.

(C) MAINTENANCE:

Maintenance will be performed by the customer.

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**CITY OF SANTA CLARA
SILICON VALLEY POWER**

**RATE SCHEDULE PA-E
ELECTRIC SERVICE TO
COMMUNICATIONS ATTACHMENTS
TO SVP POLES**

Sheet 1 of 2

APPLICABILITY:

This schedule is applicable to unmetered service to telecommunications equipment mounted on SVP-owned poles. Electric usage at each electric connection will be determined as set forth in Note (F) below.

RATES:

CUSTOMER CHARGE:

For each electric connection, per month \$5.52

ENERGY CHARGE (in addition to the Customer Charge):

First 800 kWh, per kWh \$0.26620
Excess over 800 kW, per kWh \$0.24166

SURCHARGES:

Public Benefits Charge and State Surcharge, as set forth in Note A, will be added to the above charges.

NOTES:

(A) SURCHARGES:

PUBLIC BENEFITS CHARGE:

The Public Benefits Charge is a state required non-bypassable surcharge imposed on all sales of electricity and electrical services. It is used to fund public goods research, development, and demonstration, as well as, energy efficiency activities, renewable energy, and low income assistance programs. The surcharge is equal to 2.85% of the otherwise applicable rate.

STATE SURCHARGE: The state surcharge is required by California state law, and supports funding for the California Energy Commission. The surcharge is equal to estimated kWh per controller times the State Surcharge Rate. The current State Surcharge Rate can be found on SVP's website at:

<http://www.siliconvalleypower.com/svp-and-community/rules-and-regulations>

(B) TYPE OF SERVICE:

Energy will be supplied at 120 volts, single phase, two wire service. Where only other voltages are available, applicant shall pay, in advance, Silicon Valley Power's cost to convert from the available voltage to 120 volts.

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**CITY OF SANTA CLARA
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**RATE SCHEDULE PA-E
ELECTRIC SERVICE TO
COMMUNICATIONS ATTACHMENTS
TO SVP POLES**

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- (C) POINT OF DELIVERY:
Delivery will be made from Silicon Valley Power's existing electric lines at a point mutually agreed upon, without extension thereof to customer's system.
- (D) SERVICE CONNECTION:
Silicon Valley Power will provide overhead or underground service in accordance with the current Rules and Regulations for Electric Service. However, applicant shall pay to Silicon Valley Power, in advance, the amount, if any, by which Silicon Valley Power's costs to provide underground service exceeds its cost to provide an overhead service.
- (E) MAINTENANCE:
Maintenance will be performed by the customer.
- (F) DETERMINATION OF ELECTIC USAGE:

The amount of electric usage subject to the Energy Charge shall be determined as the product of the rated capacity, expressed in kilowatts, of Customer's communications equipment served at each connection point times 730. Customer shall be responsible for notifying SVP at least 60 days prior to making any equipment change that would increase or decrease the rated capacity of Customer's equipment, in order that SVP may make commensurate, timely change to Customer's billing determinants.

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